

HOUSE No. 1879

The Commonwealth of Massachusetts

PRESENTED BY:

Joseph D. McKenna

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ensure backyard privacy.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/7/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>3/25/2025</i>

HOUSE No. 1879

By Representative McKenna of Sutton, a petition (accompanied by bill, House, No. 1879) of Joseph D. McKenna relative to the videotaping or taking of moving digital images of activities in the backyard of certain adjoining residential properties. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1672 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ensure backyard privacy.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 MGL Chapter 272 is amended by adding the following new section:

2 SECTION XX:

3 Section 1. Any owner or tenant of residential real property shall have a private right of
4 action for damages against any person who installs or affixes a video imaging device on property
5 adjoining such residential real property for the purpose of video taping or taking moving digital
6 images of the activities which occur in the backyard of the residential real property without the
7 written consent thereto of such owner and/or tenant with intent to harass, annoy, or alarm another
8 person, or with intent to threaten the person or property of another person. The provisions of this

9 section shall not apply to any law enforcement personnel engaged in the conduct of their
10 authorized duties.

11 Section 2. For the purposes of this section , “backyard” shall mean that portion of the
12 parcel on which residential real property is located which extends beyond the rear footprint of
13 the residential dwelling situated thereon, and to the side and rear boundaries of such parcel
14 extending beyond the rear footprint of such residential dwelling.